



GOVERNMENT OF TELANGANA

TENDER INVITATION DOCUMENT

For

Procurement and Supply of DEXA Scanner to Endocrinology department at various government hospitals / institutions in Telangana under Rate Contract for a period of 2 years

Tender No. 1A.67/TGMSIDC/EQU/2025-26, Dt.: 16.04.2025

Tender ID: 662453



Tender Inviting Authority:

TELANGANA MEDICAL SERVICES & INFRASTRUCTURE DEVELOPMENT CORPORATION

DM & HS Campus, Sultan Bazar, Hyderabad- 500095

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 **TELANGANA MEDICAL SERVICES & INFRASTRUCTURE DEVELOPMENT**
 2nd Floor, DM & HS Campus, Sultan Bazar, Koti, Hyderabad - 500 095
 Ph.No.040-40032555/888 email:tsmsidcmd@gmail.com

Tender Notice No. 01/TGMSIDC/EQU/2025-26, **Dated: 16.04.2025**
 Tenders are invited through e-Procurement Platform (online) during the FY 2025-26 under various schemes of NHM, DME, TVVP and DoPH.

A. Procurement & Supply of Medical Equipment, Furniture Items & Other items if any to Government Hospitals/ Institutions in the State of Telangana under the Rate Contract and
B. Mechanized laundry services with supply of bed sheets for all tertiary care & secondary care facilities functioning under DME and TVVP.

For complete details, please visit website <https://tender.telangana.gov.in> and <http://www.tgmsidc.telangana.gov.in> from **16.04.2025 onwards** time to time. The Managing Director, TGMSIDC reserves the right to cancel the tenders at any time without assigning any reasons.

DIPR R.O.No.428-PP/CL/ADVT/1/2025-26 Dt. 15.04.2025 Sd/- MANAGING DIRECTOR

Published on 16.04.2025 in "English Daily News Paper – The Hindu"

తెలంగాణ వైద్య సేవలు & మౌలిక అభివృద్ధి సంస్థ
 2వ అంతస్తు, DM & HS క్యాంపస్, సుల్తాన్ బజార్, కోటి, హైదరాబాద్-500095
 ఫోన్ నం. 040-40032555/888, ఇమెయిల్: tsmsidcmd@gmail.com

టెండరు ప్రకటన నం. 01/TGMSIDC/EQU/2025-26 **తేది: 16-04-2025**
 NHM, DME, TVVP మరియు DoPHలలో వివిధ పథకాల క్రింద FY 2025-26 వ్యవధికై ఇ-ప్రొక్యూర్ మెంట్ ప్లాట్ ఫారమ్ (అన్ టైన్) ద్వారా టెండర్లు కోరబడుచున్నవి.

A. రేట్ కాంట్రాక్ట్ క్రింద తెలంగాణ రాష్ట్రంలోని ప్రభుత్వ ఆసుపత్రులు/ఇన్ స్టిట్యూషన్లకు ఏవేని మెడికల్ ఎక్స్ ప్లెంట్, ఫర్నిచర్ ఐటమ్లు & ఇతర ఐటమ్ల సేకరణ & సరఫరా మరియు B. DME మరియు TVVP క్రింద అన్ని టెర్షియరీ కేర్ & సెకండరీ కేర్ సౌకర్యాల కొరకు బెడ్ షీట్లు సరఫరాతో మెకనైజ్డ్ లాండ్రీ సర్వీసులు

పూర్తి వివరాలకై <https://tender.telangana.gov.in> మరియు <http://www.tgmsidc.gov.in> వెబ్ సైట్లను **16-04-2025 నుండి** కాలానుగుతంగా దర్శించండి. ఎట్టి కారణం తెలియజేయకుండా ఏ సమయంలోనైనా టెండర్లు రద్దుచేయుటకు మేనేజింగ్ డైరెక్టర్, TGMSIDC వారు హక్కు కలిగివున్నారు.

సం/- (15.04.2025), మేనేజింగ్ డైరెక్టర్

DIPR R.O.No. 427-PP/CL/ADVT/1/2025-26, Dt. 15-04-2025

Published on 16.04.2025 in "Telugu Daily News Paper - Velugu"

DISCLAIMER

1. The information contained in this tender document is selective and is subject to updating, expansion, revision and amendment. Each recipient must conduct its own analysis of the information contained in this tender document or to correct any inaccuracies therein that may be in this tender document and is advised to carry out its own investigation into the proposed Rate Contract, the legislative and regulatory regime which applies thereto and by and all matters pertinent to the proposed Rate Contract and to seek its own professional advice on the legal, financial, regulatory and taxation consequences of entering into any agreement or arrangement relating to the proposed Rate Contract.
2. Tender document and the information contained therein is meant only for those applying for this Rate Contract, it may not be copied or distributed by the recipient to third parties or used as information source by the Bidder or any other in any context, other than applying for this proposal.
3. The Authority may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information, contained in this tender document.
4. The issue of this tender document does not imply that the Authority is bound to select a Bidder for the Rate Contract and the Authority reserves the right to reject all or any of the Bidders or Bids at any point of time for any administrative reasons.
5. The Bidder shall bear all its costs associated with or relating to the preparation and submission of its Bid including but not limited to preparation, copying, postage, delivery fees, digital signature, expenses associated with any demonstrations or presentations which may be required by the Authority or any other costs incurred in connection with or relating to its Bid. All such costs and expenses will remain with the Bidder and the Authority shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a Bidder in preparation or submission of the Bid, regardless of the conduct or outcome of the Bidding process.

Sd/- (02.01.2026)
Managing Director,
TGMSIDC

SECTION-I
GOVERNMENT OF TELANGANA
TELANGANA MEDICAL SERVICES & INFRASTRUCTURE
DEVELOPMENT CORPORATION

NOTICE INVITING TENDERS

Tender No. 1A.67/TGMSIDC/EQU/2025-26, Dt: 16.04.2025

Telangana Medical Services & Infrastructure Corporation (TGMSIDC) is State Government based agency to invite and finalize tenders/proposals for indents and various other requirements in Government Hospitals across the state of Telangana. TGMSIDC invites online tenders in E-procurement portal <https://tender.telangana.gov.in/> from eligible and qualified bidders for the work of "Procurement and Supply of Digital Radiography to Radiology department at various government hospitals / institutions in Telangana under Rate Contract for a period of 2 years" as follows:

Bid calling date	03-01-2026
Downloading of Bid document	03-01-2026, 05:30 PM
Pre-bid meeting date/time*	08-01-2026, 12:00 Noon
Bid closing date/time	20-01-2026, 03:30 PM
Technical Bids opening date/time	20-01-2026, 04:00 PM
Verification of Uploaded Documents date/time**	Would be notified later
EMD (Earnest Money Deposit)	As per Annexure-1
Bid Validity	90 days from the bid opening date
Tender Processing Fee <u>Pl. see the Note (2) below</u>	The bidder shall remit a non-refundable Tender processing fee for an amount indicated in Note (2) below through online remittance in to the account of the Managing Director, TSMSIDC (Account No. 142410100019139 of Union Bank of India, Kendriya Sadan Branch, Hyderabad 500195, IFSC Code: UBIN0814245)
Contact details for tendering process:	The General Manager, Equipment wing TGMSIDC, Hyderabad. Email Id. tsmsidcequ@gmail.com Mob: 9391003370

All Times are as per (IST). The dates stipulated above are fixed and under no circumstances they will be relaxed unless otherwise extended by an official notification or the day happens to be a public Holiday.

Note (1):

* Any requests for clarifications on the tender condition/specifications shall be informed at least two days in advance prior to the Pre-Bid meeting date in writing. Any representation/clarification will not be entertained after this due date. The queries will be discussed during pre-bid meeting.

** Bidders shall note the following regarding verification of uploaded documents:

- i. Location for verification of documents: TGMSIDC Head Office, DM&HS Campus, Koti, Hyderabad.
- ii. The bidder/bidder's nominated representative shall be present for verification of documents.
- iii. The bidder/bidder's nominated representative shall be able to clarify any issues raised regarding eligibility and other issues related to the tender.
- iv. The bidder/bidder's nominated representative shall bring all originals for verification. TGMSIDC will retain the original BG towards EMD.
- v. The letter head & official seal shall be brought to submit any confirmation if required.
- vi. In case the bidder/bidder's nominated representative is absent, TGMSIDC shall proceed as per evaluation made and objections by the other bidders, TGMSIDC decision shall be final.
- vii. TGMSIDC reserves right to seek any clarifications from the bidder on Rs.100/- NJS paper duly notarized.

NOTE (2):

Tender Processing Fee	
a) Value of procurement is Rs. 50.00 lakhs or more	Rs. 23,600/- (including 18% GST)

Sd/- (02.01.2026)
Managing Director,
TGMSIDC

Indicative Statement of important limits/values related to bid

Clause	Item	Description
NIT	Tender Processing Fee	Online remittance into the account of the Managing Director, TGMSIDC, Hyderabad and upload the scanned copy of Transaction slip with UTR number.
Annexure-1&GIT, cl. 14	EMD	As per schedule of requirements (Annexure-1). Shall be paid electronically through Net Banking/RTGS/NEFT/CreditCard/Debit Card or Bank Guarantee/DD from any Nationalized Commercial bank.
GIT, cl. 14-iii	EMD validity Period	In case of EMD submission in the form of BG, the validity should not be less than 45 days beyond the bid validity period
GIT, cl. 14-viii	Exemption of EMD	MSMEs/SSI/EM-II units registered in Telangana State only. But a declaration shall be furnished as per GFR 2017 – Format Bid Securing Declaration
GIT, cl. 33&Annexure-1	Variation in quantities.	The anticipated quantities indicated in Annexure-1 are tentative. The successful bidder(s) shall supply the quantities for which POs are issued at the same approved rates during the rate contract period.
GIT, cl. 36	Period for furnishing PSD& its validity period	Within 7 days from the date of receipt of Purchase orders with 10 % of Contract Value. The validity of Performance Security should be not less than the warranty period plus 90 days/as specified in the purchase order.
GIT, cl. 35-iii	Letter of Acceptance (LOA)	Shall furnish within 3 days from the date of issue of P.O. If fails to do so, the given P.O is deemed to be cancelled.
GIT, cl. 37	Period for signing contract	Within 7 days from date of issue of Purchase Order.
Section-V, GCC, cl.14-viii & 15-iv	Minimum Up time for equipment	95 % calculated over 3 months period.
Annexure-1 & GCC, cl. 14	Warranty period	Unconditional Warranty for the period as indicated in Annexure-1 from the date of successful commissioning of goods at users' site.
Annexure-1 & GCC, cl. 15	Comprehensive Annual Maintenance (CAMC) Period	Unconditional Comprehensive Annual Maintenance (CAMC) for the period as indicated in Annexure-1 after the warranty period.
GCC, cl. 15	Performance Security Value and validity period for CAMC	Performance Security for CAMC for amount equivalent to 5% of the total CAMC value, at least 30 days in advance of commencement of maintenance period. The validity of the Performance Security shall be covering entire maintenance period and 60 days beyond it, for

	period	performing its obligation during the maintenance period.
GCC, cl. 16	Payment terms:	a) 90% of Contract Value will be paid on submission of original Invoice enclosing original Delivery Challan with stock entries and installation report in Annexure-6 from the concerned authorities. b) Remaining 10% of payment shall be paid on submission of satisfactory report upon commissioning & trial running in Annexure-7 from the concerned end user.
GCC, cl. 23 (a)	LDs for late deliveries	0.5% of value of late delivered goods per week or part thereof will be taken as one-week subject to maximum of 10%. Once 10% is reached, contract is deemed cancelled for undelivered goods. No payment shall be made for goods delivered under deemed cancelled contract
GCC, cl. 23 (b)	Penalty for failure to maintain uptime during warranty or CAMC	For every reduction in up time by 1.00 % from 95%, penalty will be 1.5% of Purchase value of that equipment.
Annexure-1	Delivery & installation/ commissioning period	Supplies shall be completed within 60 days or as indicated in the purchase order(s) at designated locations in the State. (Annexure-8)

SECTION-II

GENERAL INSTRUCTIONS TO BIDDERS (GIT)

A. GENERAL

1. General Instructions

- i. Bidders would be required to register on the e-procurement platform at <https://tender.telangana.gov.in/> and submit bids online. Offline bids shall not be accepted.
- ii. This tender is an e-tender and only on-line bid will be accepted. The bidders interested in participation, shall visit e-tender portal <https://tender.telangana.gov.in/>.
- iii. The Bidders need to scan and upload all the required documents as per the check list (Form-T2). Upload the documents in Zip Format with suitable description in the relevant folders.
- iv. Bidders must pay bid processing fee (Non-refundable) as indicated in Bid document through online remittance only into the account of the Managing Director, TGMSIDC Hyderabad. (the scanned copy of the online payment receipt along with the UTR number shall be uploaded in e-procurement portal).
- v. In absence of such fee, bid will be treated as non-responsive and accordingly rejected.
- vi. Bids must be filed in the given formats only.
- vii. Bidders must sign all the documents, statements and certificates before scanning and uploading online in e-procurement portal, owning responsibility for their correctness and authenticity.
- viii. Documents which are not clear/not visible will not be considered for prequalification/technical evaluation. Hence it is the responsibility of the bidder to scan and verify the clarity of documents before uploading them online in e-procurement portal.
- ix. TGMSIDC shall not hold any risk and responsibility for loss of data /files/documents/visibility/readability during uploading of the scanned documents or any other problem encountered by bidder while submitting bid online.
- x. All the bidders shall invariably upload the scanned copy of online remittance receipt/BG/DD towards EMD in e-procurement portal.
- xi. TGMSIDC will carry out the technical bid evaluation solely based on the uploaded certificates/documents, Bid processing fee & online remittance receipt/BG/DD towards EMD in e-procurement portal and open the price bids of the responsive bidders.
- xii. TGMSIDC will notify the successful bidder for submission of original hard copies of all the uploaded documents.
- xiii. The successful bidder shall furnish the Originals, certificates/ documents of the uploaded scanned copies to the TIA in person immediately.

- xiv. TGMSIDC will ensure the genuineness of the online remittance receipt/BG/DD towards EMD, certificates/documents uploaded by the bidder in e-procurement portal in support of the qualification criteria before concluding agreement.
- xv. The documents uploaded shall be signed by the bidder in all pages with office seal and should be "Serially Numbered".

2. Definitions& Abbreviations:

In this contract, the following terms shall be interpreted as indicated. Terms defined in general instructions to bidders section shall have the same meaning.

- a. **TIA-** means Tender Inviting Authority (The Managing Director, TGMSIDC)
- b. **BFC** – means Bid Finalization Committee
- c. **Tender call or invitation for bids**, means the detailed notification seeking a set of solution(s), service(s), materials or any combination of them.
- d. **Bidder or Supplier or Vendor** - The individual or firm supplying the goods and or services under this contract. The word vendor/Supplier when used in the pre award period shall be synonymous with bidder and when used after award of the contract shall mean the successful bidder with whom TGMSIDC signs the contract for rendering of goods and services.
- e. **Contract-** means the agreement entered into between the TGMSIDC and the vendor, as recorded in the contract form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein;
- f. **Contract price-** means the price payable to the vendor under the contract for the full and proper performance of its contractual obligations;
- g. **Specification** means the functional and technical specifications or statement of work, as the case may be.
- h. **Firm** means a company, authority, co-operative or any other organisation incorporated under appropriate statute as is applicable in the country of incorporation.
- i. **Technical bid** - That part of the offer, that provides information to facilitate assessment by TGMSIDC, professional, technical and financial standing of the bidder and conformity to requirements.
- j. **Financial Bid** - That part of the offer, that provides price schedule and total costs including taxes etc.
- k. **Two-part Bid** - The technical bid and financial bids & their evaluation is sequential.
- l. **Composite bid** - A bid in which the technical and financial parts are combined into one, but their evaluation is sequential.
- m. **Goods and services** mean the solution(s), service(s), materials or a combination of them in the context of the tender call and specifications.

- n. **The word “goods”** when used singly shall mean the hardware, firmware component of the goods and services.
- o. **Warranty / Maintenance period** - Unconditional defect liability period mentioned in bid document for the goods supplied.
- p. **Comprehensive Annual Maintenance Contract (CAMC)** means unconditional comprehensive maintenance of goods which will include maintenance services for goods including replacement of parts.
- q. **Day-** means calendar day.
- r. **Down time** - means the time period when specified services with specified technical and service standards are not available to user(s). More details below.
- s. **Goods** - means all the equipment and/or other materials including all accessories which the supplier is required to supply to the purchaser under the contract
- t. **GCC** - means the General conditions of contract contained in this section.
- u. **SCC** - means the Special conditions of contract contained in this section.
- v. **Incidental services or Services-** means those services ancillary to the supply of the goods and services, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training, training manuals and other such obligations of the vendor covered under the contract;
- w. **Purchaser/User** - means TGMSIDC or ultimate recipient of goods and services
- x. **Project site** where applicable, means the place(s) where goods/services are to be made available to user.
- y. **SCC** - means the special conditions of contract if any.
- z. **Undependable Supplier** - Bidders who are declared Non-dependable by any Government in India/any State Government/Organization or its agencies during last 3 years (from bid calling date) and declaration is in force as on bid calling date or is in force at present (During the period from bid calling date to signing of contract).
- aa. **Earnest Money Deposit (EMD):** The instrument / amount sought from the bidder to assure his continued interest till award of contract and to assure his conduct in accordance with bid conditions during the bid evaluation process.
- bb. **Up time** - means the time period when specified services with specified technical and service standards are available to user(s). More details below.

Example of up time:
 (No of hours in 3 months – Down time in hours in 3 months) X100/ (No. of hours in 3 months period)
- cc. **Down Time:** Down Time is defined as the time during which the systems and/or services running on it are not available or are deemed to be not available to the users in part or full due to any non-functioning, repairs/problems/failure of support equipment etc. The downtime will be counted from the time problem is reported to the bidder electronically or telephonically or online or by any other

means till problem is solved/rectified to the satisfaction of user. Penalty shall be applicable once the admissible down time is crossed as per bid conditions.

Example of down time:

- (a) If complaint is made at 6.00 PM and equipment is restored at 11.00 AM of next day, down time will be 17 hours. (6.00 PM to 12.00 mid Night. Mid Night to 11.00 AM)
- (b) If CVT or any other accessory attached to equipment is down and equipment could not be used due to that, the equipment shall be deemed down.

3. Eligibility Criteria:

- i. The bidder should be either a Manufacturer or an Authorized Distributor of Medical/Lab Equipment or Directimporters and should be in business of manufacture or supply, as the case may be and in maintenance of the offered items for a minimum period of three (3) years in India as on bid calling date.
- ii. The bidder shall have Average Annual turnover for the previous three financial years as mentioned in Annexure-1 against the corresponding items. If the bidder quotes for more than one item, the Avg. Annual turnover shall be in cumulative of all quoted Items.
- iii. Subject to Pre-Qualification conditions, this invitation for bids is open to all firms both from within and outside India, who are eligible to do business in India under relevant Indian laws as are in force as on bid closing date.
- iv. Bidder should have a minimum of one service center at Hyderabad with at least five (5) Service Engineers.
- v. The bidder (in case, the bid is submitted by any authorized distributor, then either the Authorised Distributor (OR) its Manufacturer) should have supplied to either Government or private organizations/hospitals/ institutions in India, minimum quantities (in Nos) for the items/products mentioned in Annexure-I in tender document.
- vi. The bidder should upload the information online in E-procurement portal on Major past supplies under the relevant product/services in Form-P5 issued by Chartered Accountant/Statutory Auditor concerned for each of the preceding last three financial years.
- vii. Breach of general or specific instructions for bidding, general and special conditions of contract with TGMSIDC or any of its user organisations may make a firm ineligible to participate in bidding process.
- viii. Following is not eligible to participate in tender:
 - a) The bidders who have withdrawn their bids in any of the previous tenders of TGMSIDC during last 3 years (from bid calling date).

- b) Bidders marked/blacklisted/considered by TGMSIDC to be ineligible to participate for non-satisfactory past performance, corrupt, fraudulent or any other unethical business practices shall not be eligible.
- c) Bidders who are on blacklist of any Organization of Government of India/any State Government or its agencies as on bid calling date.
- d) Bidders who are on blacklist of any Organization of Government of India/any State Government or its agencies for any period during the period from bid calling date to signing of contract.
- e) Bidders who are declared Non-dependable by any Government in India/any State Government/Organisation or its agencies during last 3 years (from bid calling date) and declaration is in force as on bid calling date or is in force at present (During the period from bid calling date to signing of contract).

4. Bidding procedure:

- i. The bidder shall upload all the documents online on E-procurement portal only.
- ii. Bids shall be submitted in two parts i.e., Technical Bid and Financial Bid online on the E-procurement portal in the form and formats provided in this document.
- iii. Before scanning and uploading the documents online on E-procurement portal, the bidder/authorized representative shall sign on all the pages /documents owning the responsibility of authenticity of documents uploaded.
- iv. Documents which are not clear/not visible will not be considered for technical evaluation. Hence it is the responsibility of the bidder to scan and verify the clarity of documents before uploading them online on e-procurement platform.
- v. Bids of firms who have furnished all the required documents alone will be considered. Only those documents which are uploaded online on E-procurement portal will be considered. No plea whatsoever will be entertained from any bidder in this regard.
- vi. Bidders shall not quote unreasonably high prices. In case the quoted price/prices is/are unreasonably high then the TGMSIDC reserves the right to disqualify such bidder(s) to participate in future tenders invited by TGMSIDC.
- vii. TGMSIDC may ask the bidder(s) to produce copies of invoices of same model(s) of item(s) quoted in the tender, supplied to any other Government organization in support of their quoted price(s).

5. Clarification of bidding documents (Pre-bid Meeting):

- i. All the prospective bidders can participate in the Pre-Bid meeting to seek clarifications on the bid, if any. Pre-Bid meeting will be held at the Head Office of TGMSIDC H.O., Sultan Bazar, Koti, Hyderabad as per the schedule indicated in the tender document.

- ii. Only the conditions of general nature relevant to them are open for discussion. The critical criteria in the Technical Specifications are not in the scope for discussions or modifications.
- iii. Any representation/clarifications on the tender conditions may be informed at least two days in advance prior to the Pre-Bid meeting.
- iv. Any representation/clarification received after this due date will not be entertained. The queries will be answered during pre-bid meeting. It is further clarified that TGMSIDC shall not entertain any correspondence regarding delay or non-receipt of clarification from TGMSIDC.
- v. The TIA reply to the representations/clarifications received from the prospective bidders will be published online in E-procurement portal.

6. Amendment of bidding documents

- i. At any time prior to the deadline for submission of bids, TGMSIDC, for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, may modify the bidding documents by amendment.
- ii. Amendments if any shall also be binding on all prospective bidders even those who have already received/downloaded the bidding documents.
- iii. All the amendments will be notified online only in E-procurement portal from time to time.
- iv. In order to allow prospective bidders reasonable time to take the amendment into account in preparing their bids, TGMSIDC at its discretion may extend the deadline for the submission of bids.

7. Bid forms and Language of Bid

- i. Wherever a specific form is prescribed in the bid document, the bidder shall use the form to provide relevant information. If the form does not provide sufficient space for any required information, space at the end of the form or additional sheets shall be used to convey the said information.
- ii. For all other cases the bidder shall design a form on its own to hold the required information.
- iii. Bids shall be prepared in English language only. All correspondence with purchase shall also be English language only. However, any printed material could be in any other language so long as accompanied by an English translation. For the purpose of interpretation, English translation shall prevail.

8. Cost of bidding

- i. The bidder shall bear all costs associated with the preparation and submission of its bid, and TGMSIDC will in no case be responsible for those costs, regardless of the conduct or outcome of the bidding process.

- ii. Bidder is expected to examine all instructions, forms, terms, and specifications in the bidding documents. Failure to furnish all information required by the bidding documents or to submit a bid not substantially responsive to the bidding documents in every respect will be at the bidder's risk and may result in the rejection of its bid.

9. Tender Processing Fee

The bidder shall submit a Non-refundable tender processing fee for an amount as specified in the NIT/Schedule of requirements to be remitted online into the account of Managing Director, TSMSIDC, Hyderabad (Account No. 142410100019139 of Union Bank of India, Kendriya Sadan Branch, Hyderabad 500195, IFSC Code: UBIN0814245) and upload the original Transaction slip with UTR number. Failure to pay the Processing fee will entitle for rejection of the bid.

Tender Processing Fee	
a) Value of procurement is Rs. 50.00 lakhs or more	Rs. 23,600/- (including 18% GST)

10. Period of validity of bids

- i. Bids shall remain valid for the days as specified in the Notice Inviting Tender (NIT)/ Schedule of requirements. A bid valid for a shorter period shall be rejected as non-responsive.
- ii. In exceptional circumstances, TGMSIDC may solicit the bidders' consent to an extension of the period of validity. The request and the responses thereto shall be made in writing. The bid security shall also be suitably extended. However, a bidder granting the request will not be permitted to modify its bid.

11. Contacting TGMSIDC

- i. Bidder shall not approach TGMSIDC officer(s) outside of office hours and/or outside TGMSIDC office premises, from the time of the tender call notice to the time the contract is awarded.
- ii. Any effort by a bidder to influence TGMSIDC officer(s) in the decisions on bid evaluation, bid comparison or contract award may result in rejection of the bidder's offer and bidder may also be marked as ineligible for future bids. If the bidder wishes to bring additional information to the notice of the TGMSIDC, it should do so in writing only.

B. PREPARATION OF TENDERS

12. Preparation of Pre-qualification/technical bid

It shall contain of the following parts:

- i. General business information

- ii. Turnover details
- iii. Major clients' details
- iv. Service centre details
- v. Past performance details
- vi. Declaration Form
- vii. Financial Capacity of bidder
- viii. Bid security (EMD)
- ix. Technical documentation – confirmation to technical specifications etc.
- x. Plan for in lab proof of concept, if required in tender call.
- xi. Plan for field demonstration if required in tender call
- xii. Detailed technical documentation, reference to various industry standards to which the goods and services included in bidder's offer conform, and other literature concerning the proposed solution. In particular, the bidders should identify areas in which their solution conforms to open standards and areas that are proprietary in nature. Justification about proprietary components in terms of functionality and performance should be given.
- xiii. In the case of a bidder offering to supply goods under the contract which the bidder did not manufacture or otherwise produce, the bidder has been duly authorised by the good's manufacturer or producer to supply the goods in India. It will not apply when bid is open only to manufacturers.
- xiv. A statement of the serviceable life of goods and services offered by the firm. Available sources of maintenance and technical support during the serviceable life. Available sources of spare parts, special tools, etc. Necessary for the proper and continuing functioning of the goods and services, for the serviceable life.
- xv. Any other information required as per bid document.

13. Preparation of financial bid

The financial bid should provide cost calculations corresponding to unit price of each item of the schedule in the form provided in e-procurement portal.

a) Bid prices:

- i. The bidder shall indicate the unit prices for the Unit indicated in Bid and the total bid price of the goods it proposes to supply under the contract as per Format. Bid prices shall be rounded off to nearest rupee. Price quoted for a Unit of measurement (UOM) other than the Unit (UOM) indicated in Bid shall not be considered and bid for that product shall be treated as non-responsive.
- ii. The bidder shall mention the list of accessories along with their price if any required for installation & commissioning of the equipment.

- iii. The bidder shall indicate Prices inclusive of all GST, duties, packing, insurance, Loading/Unloading, road permit, and transportation to destination across Telangana State etc. in the form prescribed on eProcurement Platform.
- iv. Bidder's separation of price components will be solely for the purpose of facilitating the comparison of bids by TGMSIDC and will not in any way limit the purchaser's right to contract on any of the terms offered.
- v. Prices quoted by the bidder shall be fixed during the bidder's performance of the contract and not subject to variation on any account unless otherwise specified in the tender call. A bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.
- vi. However, variation in GST from the date of filing bid up to the period of contract will be adjusted accordingly. Bidder must quote present GST which has been taken into consideration in the Price quoted. - Bidder should give the breakup into CGST and SGST.
- vii. The prices quoted by bidder shall not be more than the controlled price fixed if any by the competent authority for that product.
- viii. The prices quoted by bidder shall not be more than the MRP fixed for that product.

b) Bid currency:

Prices shall be quoted in Indian rupees.

14. Bid security i.e., Earnest money deposit (EMD)

- i. The bidder shall furnish, as part of its bid, a bid security (EMD) for the amount specified in the **Annexure-1**.
- ii. The EMD shall be paid electronically through Net Banking/RTGS/NEFT/ Credit Card/Debit Card or through Bank Guarantee/DD from any Nationalized Commercial bank to be credited in the Govt. Pool account.
- iii. In case of EMD submission in the form of BG, the validity should not be less than 45 days beyond the bid validity period.
- iv. The bid security is required by TGMSIDC to:
 - a. assure bidder's continued interest till award of contract and
 - b. Conduct in accordance with bid conditions during the bid evaluation process.
- v. The bid security shall be in Indian rupees issued by any nationalised bank or scheduled commercial bank in India and having at least one branch office in Hyderabad.
- vi. Unsuccessful bidders' earnest money will be returned to them without any interest, not later than thirty days after the BFC approval. Successful bidder's earnest money will be returned without any interest, after receipt of performance security from that bidder.

vii. The bid security shall be forfeited:

- a. if a bidder withdraws its bid during the period of bid validity or
- b. In the case of a successful bidder, if the bidder fails to sign the contract in time; or fails to furnish performance security in time.

viii. MSMEs/SSIs/EM-II units registered in the state of Telangana are exempted from paying the EMD.

In place of Bid Security, the bidders (MSMEs/SSIs/EM-II units) shall furnish a bid security declaration accepting that, if the bid is withdrawn or modified during the bid validity period or if the successful bidder fails to sign the contract upon awarding or fails to submit the required Performance Security on or before the deadline date, such bidders will be suspended for a period of 3-years from doing business in the State of Telangana or elsewhere in the country.

This incentive is subject to production of MSME/SSI/EM-II certificate issued by the relevant competent authority. **For Traders EMD exemption is not applicable.**

In place of Bid Security, the bidders shall furnish a bid security declaration accepting that, if the bid is withdrawn or modified during the bid validity period or if the successful bidder fails to sign the contract upon awarding or fails to submit the required Performance Security on or before the deadline date. Such bidders will be suspended for a period of 3-years from doing business in the State of Telangana or elsewhere in the country.

C. SUBMISSION OF TENDERS

15. Submission of bids

Bids shall be submitted in two parts i.e., Technical Bid and Financial Bid, online on the E-procurement portal in the formats provided in this document.

16. Deadline for submission of bids and hard copies

- i. Bids must be received no later than the bid submission date and time specified in the Notice Inviting Tender (NIT).
- ii. Hard copies of required documents must be received by TGMSIDC contact person not later than the hard copies submission date and time as specified in the Notice Inviting Tender (NIT).
- iii. TGMSIDC may, at its discretion, extend this deadline for the submission of bids/hard copies by amending the tender call, in which case all rights and obligations of TGMSIDC and bidders previously subject to the deadline will thereafter be subject to the deadline as extended.

17. Late bids and hard copies- Not applicable for Online bids

Any bid and or hard copies not received by the TGMSIDC by the deadline for submission of bids/hard copies will be rejected and returned unopened to the bidder.

18. Modification and withdrawal of bids

Modification: Once submitted in e-procurement portal, the bidder can view and modify his bid for any number of times superseding earlier bid(s) before the date and time of submission is allowed. The system shall consider only the last bid submitted as the valid bid.

Withdrawal: The bidder may withdraw his bid before the bid submission deadline, and it shall be marked as withdrawn and shall not get opened during the bid opening. No bid should be withdrawn after the deadline for the bid submission and before the expiry of the bid validity period. If a bidder withdraws the bid during this period, the Procuring Entity shall be within its right to enforce Bid Securing Declaration (in lieu of forfeiture of the EMD), in addition to other punitive actions provided in the Tender Document for such misdemeanour.

19. General Business information:

The bidder shall furnish general business information to facilitate assessment of its professional, technical and commercial capacity and reputation.

D. OPENING OF TENDERS

20. Opening of bids:

- i. The bid opening and evaluation process will be sequential in nature. It means that bidder must qualify in a particular stage to make him eligible for evaluation in next stage. Immediately after the closing time, TGMSIDC shall open the technical bids and list them for further evaluation. The financial bids shall remain sealed. After completion of technical bids evaluation, the financial bids of those bidders will be opened who are qualified in technical evaluation.
- ii. The Status of bid evaluation and other related information will be updated online. The participating bidders are advised to view the status online.
- iii. The standard procedure described here will stand appropriately modified, in view of special procedures of bid evaluation as mentioned in tender call or elsewhere in this bid document or as decided by TGMSIDC during the course of evaluation to meet any specific situation or need arising from time to time.
- iv. Bids will be in two parts (technical and financial) as indicated in the tender call. For two-part bid there will be two bid opening events. But in all cases evaluation will be sequential. Following guidelines will generally be followed by TGMSIDC officers at each such event. However, TGMSIDC may deviate from these in specific circumstances if it feels that such deviation is unavoidable or will improve speed of processing.

21. Preliminary examination of Bids

- 1) Preliminary scrutiny will be made to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, numbered and whether the bids are generally in order.

- 2) TGMSIDC may waive any minor infirmity, nonconformity or irregularity in a bid which does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any bidder.
- 3) Prior to the detailed evaluation, TGMSIDC will determine the substantial responsiveness of each bid to the bidding documents. For purposes of these clauses, a substantially responsive bid is one which conforms to all the terms and conditions of the bidding documents without material deviations.
- 4) If a bid is not substantially responsive, it will be rejected by TGMSIDC and may not subsequently be made responsive by the bidder by correction of the nonconformity.
- 5) Arithmetical errors will be rectified on the following basis. If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price and quantity shall prevail and the total price shall be corrected accordingly. If the vendor does not accept the correction of the errors, its bid will be rejected and its bid security may be forfeited. If there is a discrepancy between words and figures, the text in words will prevail.
- 6) A substantively responsive bid is complete and conforms to the Tender Document's essential terms, conditions, and requirements, without substantive deviation, reservation, or omission. Only substantively responsive bids shall be considered for further evaluation. Unless otherwise stipulated in the ITB, the following are some of the crucial aspects for which a bid shall be liable to be rejected as nonresponsive:
 - i. The bid is not in the prescribed format or is not submitted as per the stipulations in the Tender Document.
 - ii. Bidder is not eligible to participate in the bid as per laid down eligibility criteria;
 - iii. The Goods offered are not eligible as per the provision of this tender.
 - iv. Bidder has quoted conditional bids or more than one bid or alternative bids unless permitted explicitly in the ITB.
 - v. The bid validity is shorter than the required period.
 - vi. The bid departs from the essential requirements stipulated in the bidding document;
 - vii. Bidder has not quoted for total anticipated quantity indicated against the respective item.

22. Clarification of bids

During evaluation of the bids, TGMSIDC may, at its discretion, ask the bidder, in writing, for clarification of its bid. However, no change in price or substance of the bids shall be sought, offered or permitted.

E. SCRUTINY AND EVALUTION OF TENDERS

23. Bid evaluation procedure:

Bids would be evaluated item wise. Bidders should offer prices for one or more or all the items of given schedule of requirement and for the full quantity of quoted item(s). If a bidder has any comment to offer about the procedural aspects of this tender, it should be intimated to TGMSIDC during the pre-bid meeting. In case the schedule or procedure of tender processing is revised, the same shall be communicated online and revised schedule or procedure shall be binding on all.

24. Document verification

- a) Firstly, the documentation furnished by the bidder shall be examined prima facie to see if the technical skill base and financial capacity and other bidder attributes claimed therein are consistent with the needs of this project.
- b) TGMSIDC may ask bidder(s) for additional information, PowerPoint or 3-D presentations / demonstration of products offered, visit to bidders site and/or arrange discussions with their professional, technical faculties to verify claims made in technical bid documentation.
- c) Any questions/complaints by other bidders regarding experience, eligibility, financial and quantity turnover should be made on or before the date of document verification only.
- d) Such queries shall not be addressed subsequently even at the stage of technical presentation/demo.

25. Technical verification/evaluation of samples:

The Technical Committee concerned will verify the samples including all the technical aspects as per the technical specifications specified in the tender document of those bidders only who have qualified in technical evaluation.

26. Verification of Original Documents:

- * The bidder/bidder's representatives have to be present for verification of the uploaded documents with the following original documents on the date fixed by the TGMSIDC.
 - i) Scanned copy of processing fee with UTR number.
 - ii) Scanned copy of UTR towards payment of EMD.
 - iii) Originals of scanned uploaded documents.
 - iv) Copies of Purchased orders/invoices if required in support of Form -P3.

The representative should be able to furnish originals/Copies of PO's/Invoices for verification and should also be able to identify the documents uploaded on E-

procurement portal and the representative of the bidder should be able to clarify any issues raised by the TGMSIDC officials and other bidders.

27. In lab proof of concept

In case in Lab proof of concept is required by User, the same may be organised either in TGMSIDC or in the bidder's lab by mutual discussion. In case it is organised in TGMSIDC office/lab, TGMSIDC would make available generic hardware for this purpose. Application specific hardware and software will have to be brought in by the bidder.

28. Field demonstration

The bidder, on demand, shall demonstrate functional requirements of the goods/services as described in the specifications. The demonstration site will be decided by TGMSIDC.

29. Performance and productivity of the equipment

Bidders shall state the guaranteed performance or efficiency in response to the specifications.

30. Evaluation of financial bids

Financial bids of those vendors who satisfy all phases of the technical evaluation, technical verification/evaluation of samples and corresponding to chosen technical choices will only be opened. All other financial bids will be ignored. TGMSIDC may at its discretion discuss with vendor(s) available at this stage to clarify contents of financial offer. However, Bidders may note that there will not be any post tender financial negotiations.

The decision of TGMSIDC shall be binding on all the bidders. No representations will be entertained in this regard.

31. Comparison of financial bids

- i. Evaluation of financial bids will exclude and not take into account any offer not asked for or not relevant to the present requirements of the user.
- ii. Evaluation of financial bid will take into account, in addition to the total purchase price (Inclusive of basic price and taxes etc.) one or more of the following factors:
 - a. Cost of consumables required but not provided by the bidder for annual maintenance, Preventative maintenance & Calibrations to be done during warranty period.
 - b. Cost of accessories and consumables required but not provided by the bidder for installation and commissioning of the equipment.
- iii. Price bids of the bidders may be compared with prices finalized by other Government agencies and in case bid price is higher, bidder may be asked to match lower price.

- iv. Past track record of bidder in supply/ services and performance will be considered.
- v. Any other specific criteria indicated in the bid document and/or in the specifications.
- vi. Representations related to computation of L1 with other criteria shall not be entertained.

32. Objection by Bidders:

If any bidder has any objection on Bids after the pre bid discussions, he should do so in writing. For raising the objections, the bidder should pay fee of Rs 25,000/-.Without payment no objections shall be entertained. The objections raised should not be of frivolous and flimsy nature or tactic on part of the objecting vendor to get back at his competitor or delay the scheme/project of the government. If found, serious action may be taken against such vendors.

F. NOTIFICATION OF AWARD (ISSUE OF PURCHASE ORDER)

33. Variation of quantities

The anticipated quantities indicated in Annexure-1 are tentative. The successful bidder(s) shall supply the quantities for which POs are issued at the same approved rates during the rate contract period.

34. Right to accept any bid and to reject anyone or all bids.

TGMSIDC reserves the right to accept or reject any bid or annul the entire bidding process and reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected bidder(s) or any obligation to inform the affected bidder(s) of the grounds for such decision.

35. Issue of Purchase Orders

- i. Prior to expiration of the period of bid validity, TGMSIDC will notify the successful bidder in writing that its bid has been accepted and will issue thePurchase Order.
- ii. Purchase orders under this rate contract would be issued to the successful vendor(s) from time to time as and when required over a period of 2-years.
- iii. The successful bidder shall acknowledge the Purchase Order issued through Letter of Acceptance (LOA) within 3 working days. If fails to do so, the given P.O is deemed to be cancelled.
- iv. L2 Bidder may also be considered as per requirement for about 40% of the total requirement in the tender quantity if L2 bidder matches to L1 Price provided that the L2 price is not more than 10% that of L1 price.

- v. L2 & L3 Bidders may also be considered as per requirement for about 30% & 20% respectively of the total requirement in the tender quantity if L2 & L3 bidder matches to L1 Price, provided that the L2 & L3 quoted prices are not more than 10% that of L1 price.
- vi. In any case, based on the need and the urgency of initiating the procurement by the government, the eligibility of the L2 & L3 may change.
- vii. In the above cases the bidder should give their consent for matching L1 price (Equipment) within (3) days of opening of price bids. Subsequent plea will not be considered.
- viii. In case, counter offered rates are not accepted for ratio of splitting quantity as per - bid document by any of the subsequent bidders, the left-over quantity will be divided between bidders who have accepted the rates in the ratio of their originally allocated quantities subject to their confirmation and after getting consent on mutually agreed delivery schedule for the additional quantity.

36. Performance Security Deposit (PSD)

- i. The successful bidder shall furnish Performance Security within 7 days from the date of issue of P.O. for an amount equivalent to 10% of the contract value. The validity of Performance Security should be not less than for a period 90 days beyond the warranty period/as specified in the purchase order.
- ii. Upon the successful bidder's furnishing of performance security, TGMSIDC will discharge its bid security.
- iii. Performance security shall be liable for forfeiture by TGMSIDC for the supplier's failure to complete its obligations under the contract or purchase order.
- iv. The performance security shall be denominated in Indian rupees or in a freely convertible currency acceptable to TGMSIDC and shall be in one of the following forms:
 - a. A Bank Guarantee (BG) or Demand Draft (DD), issued by a reputed bank located in India with at least one branch office in Hyderabad, in the form provided in the bidding document or another form acceptable to TGMSIDC; or
 - b. A cashier's cheque or banker's certified cheque or crossed demand draft or pay order drawn in favour of TGMSIDC.
- v. The performance security will be discharged by TGMSIDC and returned to the supplier not later than thirty (90) days following the date of completion of all formalities under the contract and if activities, post warranty, by the bidder is envisaged, following receipt of a performance guarantee for annual maintenance as per bid document.

- vi. In the event of any contract amendment, the bidder shall, within 15 days of receipt of such amendment, furnish the amendment to the performance security, rendering the same valid for the balance duration of the Contract.

37. Signing of contract

At the same time as TGMSIDC notifies the successful bidder that, its bid has been accepted, TGMSIDC will send the bidder the Contract Form (Annexure-10) provided in the tender document incorporating all agreements between the parties. On receipt of the Contract Form, the successful bidder shall sign the contract on Rs. 100/- Non-Judicial Stamp Paper and return it to TGMSIDC.

The successful bidder shall enter into agreement with TGMSIDC within 7 days from date of issue of Purchase Order.

38. Code of Integrity

TGMSIDC will reject a proposal for award and also may debar the bidder for future tenders in TGMSIDC, if it determines that the bidder has engaged in corrupt, fraudulent or unethical practices in competing for, or in executing a contract. Here:

- a. "Corrupt practice" means the offering, giving, receiving or soliciting directly or indirectly, of anything of value to influence the action of a public official in the process of contract evaluation, finalization and or execution and
- b. "Fraudulent practice" means an act or omission or misrepresentation of facts in order to influence a procurement process or the execution of a contract to detriment of the purchaser, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Purchaser of the benefits of free and open competition,
- c. "Unethical practice" means any activity on the part of bidder by which bidder tries to circumvent tender process in any manner. Unsolicited offering of discounts, reduction in financial bid amount, upward revision of quality of goods etc. after opening of first bid will be treated as unethical practice.

39. Integrity Pact

'TGMSIDC' values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/ transparency in its relations with its Bidder(s) and/ or Contractor(s).

Section - 1: Commitments of TGMSIDC

- 1) 'TGMSIDC' commits itself to take all measures necessary to prevent corruption and to observe the following principles: -
 - a) No employee of TGMSIDC, personally or through family members, shall in connection with the tender for, or the execution of a contract, demand, take

a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.

- b) TGMSIDC shall, during the tender process, treat all Bidder(s) with equity and reason. TGMSIDC shall in particular, before and during the tender process, provide to all Bidder(s) the same information and shall not provide to any Bidder(s) confidential/ additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.
 - c) TGMSIDC shall exclude from the process all known prejudiced persons.
- 2) If TGMSIDC obtains information on the conduct of any of its employees, which is a criminal offence under the IPC/ PC Act, or if there be a substantive suspicion in this regard, TGMSIDC shall initiate disciplinary actions.

Section - 2: Commitments of the 'Bidder/vendor'

- 1) The 'Bidder/ vendor' commit themselves to take all measures necessary to prevent corruption. The 'Bidder/vendor' commit themselves to observe the following principles during participation in the tender process and during the contract execution.
 - a) The 'Bidder/vendor' shall not, directly or through any other person or firm, offer, promise, or give to any of TGMSIDC's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
 - b) The 'Bidder/vendor' shall not enter with other bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the tender process.
 - c) The 'Bidder/vendor' shall not commit any offence under the relevant IPC/ PC Act; further, the 'Bidder/vendor' shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by TGMSIDC as part of the business relationship, regarding plans, technical proposals, and business details, including information contained or transmitted electronically.
 - d) The 'Bidder/vendor' shall, when presenting their bid, disclose any and all payments made, is committed to, or intends to make to agents, brokers, or any other intermediaries in connection with the award of the contract.
 - e) 'Bidder/vendor' who has signed the Integrity Pact shall not approach the Courts for resolution of any disputes arising during the currency of the contract. The disputes shall be resolved as per cl. 28 of GCC.
 - f) The 'Bidder/vendor' shall not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section - 3: Disqualification from tender process and exclusion from future contracts

If the 'Bidder/vendor', before award or during execution, has committed a transgression through a violation of Section - 2, above or in any other form such as to put their reliability or credibility in question, TGMSIDC is entitled to disqualify the 'Bidder/vendor' from the tender process or take action as per the procedure mentioned in this tender document.

Section - 4: Compensation for Damages

If TGMSIDC has disqualified the 'Bidder/vendor' from the tender process prior to the award according to Section - 3, TGMSIDC is entitled to demand and recover from 'Bidder/vendor' the damages equivalent to Earnest Money Deposit. If TGMSIDC has terminated or entitled to terminate the contract according to Section - 3, TGMSIDC shall be entitled to demand and recover from the contractor liquidated damages of the contract value or the amount equivalent to Performance Bank Guarantee.

Section - 5: Previous transgression

Bidder declares that no previous transgressions occurred in the last three years with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise in India that could justify his exclusion from the tender process. If Bidder makes an incorrect statement on this subject, he can be disqualified from the tender process, or action can be taken as per the procedure mentioned in this tender document.

Section - 6: Equal treatment of all Bidders/ Contractors/ Subcontractors

In the case of sub-contracting, the main contractor shall take responsibility for the adoption of the Integrity Pact by the sub-contractor. TGMSIDC shall enter into agreements with identical conditions as this one with all bidders and contractors. TGMSIDC shall disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section - 7: Criminal charges against violating Bidder(s)/ Contractor(s)/ Subcontractor(s):

TGMSIDC obtains knowledge of the conduct of a bidder, contractor or subcontractor, or of an employee or a representative or an associate of a bidder, which constitutes corruption, or if TGMSIDC has substantive suspicion in this regard, TGMSIDC shall inform the same to the Chief Vigilance Officer.

Section - 8: Pact Duration

This Pact begins when both parties have signed the agreement. It expires after 2-years from the date of signing of the agreement. Any violation of the same would entail disqualification of the bidders and exclusion from future business dealings.

If any claim is made/ lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above unless it is discharged/ determined by the Head of the Procuring Organization.

SECTION -III

SPECIAL INSTRUCTIONS TO BIDDERS (SIT)

1. In case of conflict, the provisions of this section shall OVERRIDE provisions indicated in the General Instructions to Bidders (GIT).

SECTION -IV

GENERAL CONDITIONS OF CONTRACT (GCC)

1. Application

These general conditions shall apply to the extent that they are not superseded by provisions of other parts of the contract.

2. Standards

The goods supplied under this contract shall conform to the standards mentioned in the specifications, and, when no applicable standard is mentioned, the authoritative standards appropriate to the goods' country of origin shall apply. Such standard shall be the latest issued by the concerned institution.

3. Use of documents and information

- i. The bidder shall not, without prior written consent from TGMSIDC, disclose/share/use the bid document, contract, or any provision thereof, or any information furnished by or on behalf of the TGMSIDC in connection therewith, to any person other than a person employed by the bidder in the performance of the contract. Disclosure to any such employed person shall be made in confidence and shall extend only so far as may be necessary for purposes of such performance.
- ii. The Bidder shall not, without prior written consent of TGMSIDC, make use of any document or information made available for the project, except for purposes of performing the Contract.
- iii. All project related document (including this bid document) issued by TGMSIDC, other than the contract itself, shall remain the property of the TGMSIDC and shall be returned (in all copies) to the TGMSIDC on completion of the bidder's performance under the contract if so required by the TGMSIDC.

4. Manuals and drawings

- i. Before the goods and services are taken over by the user, the Bidder shall supply operation and maintenance manuals, (together with drawings of the goods and services where applicable).
- ii. The Bidder shall provide complete technical documentation of hardware, firmware, all subsystems, operating systems, compiler, system software and the other software.
- iii. The manuals and drawings wherever applicable shall be in English or Telugu.
- iv. At least one set of the manuals should be supplied for each installation sites.
- v. Unless and otherwise agreed, the goods and services shall not be considered to be completed for the purpose of taking over until such manuals and drawings have been supplied to the user.

5. Inspection and acceptance tests

Inspection and tests prior to shipment of Goods and at final acceptance are as follows:

- a. Inspection of the goods shall be carried out to check whether the goods are in conformity with the specifications mentioned in the bid document. Following broad test procedure will generally be followed for inspection and testing. The bidder will dispatch the goods to the ultimate consignee after internal inspection testing along with the supplier's inspection report, manufacturer's warranty certificate. The consignee shall check the compliance of the goods in respect of make, model & technical specifications as per the Purchase Order issued.
- b. The bidder should furnish all details of the site requirement to TGMSIDC sufficiently in advance so as to get the works completed before receipt of the equipment.
- c. The Inspections and tests, at the discretion of TGMSIDC, may be conducted on the premises of the Bidder or its subcontractor(s), at point of delivery, and / or at the good's final destination. If conducted on the premises of the Bidder or its subcontractor(s), all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no charge to TGMSIDC or its representatives.
- d. Should any inspected or tested goods fail to conform to the specifications, TGMSIDC/ end user will reject the goods, and the bidder shall either replace the rejected goods or make alterations necessary to meet specification requirements free of cost to the consignee.
- e. TGMSIDC' right to inspect, test and, where necessary reject the goods after the goods' arrival at user's site shall in no way be limited or waived by reason of the goods having previously been inspected, tested and passed by TGMSIDC or its representative prior to the goods shipment.
- f. Nothing in this clause shall in any way release the bidder from any warranty or other obligations under this contract.
- g. At its option, acceptance test will be conducted by the supplier/OEM in presence of the end user / or any other person nominated by TGMSIDC. There shall not be any additional charges for carrying out acceptance tests. Any reduction in functional requirements and performance specifications shall be ground for failure. Any malfunction, partial or complete failure of any part of goods, hardware, firmware or excessive heating of hardware enclosures or bugs in the software shall be grounds for failure of acceptance test. All the software should be complete and no missing modules / sections will be allowed.
- h. The bidder shall maintain necessary log in respect of the results of the tests to establish to the entire satisfaction of the end user, the successful completion of the test specified. An average uptake efficiency of 99% for the duration of test period (7 days) shall be considered as satisfactory.
- i. In the event of the goods failing to pass the acceptance test, a period not exceeding 15 days will be given to rectify the defects and clear the acceptance test, failing which TGMSIDC reserves the rights to get the equipment replaced by the bidder at no extra cost to TGMSIDC /user within 15 days failing which,

penalty shall apply for delay in replacement at the rate applicable for delayed delivery.

6. Acceptance certificates

On successful completion of acceptability test, receipt of deliverables etc., and after the end user/consignee is satisfied with the working of the system, the acceptance certificate signed by the bidder and the end user will be issued. The date on which such certificate is signed shall be deemed to be the date of successful commissioning of the systems.

7. Packing

- i. The bidder shall provide such packing of the goods as is required to prevent their damage or deterioration during transit to their final destination. The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperature, salt and precipitation during transit and open storage. Packing case size and weights shall take into consideration, where appropriate, the remoteness of the goods' final destination and the absence of heavy handling facilities at all points in transit.
- ii. The packing, marking and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the contract, including additional requirements, if any, specified in SCC, and in any subsequent instructions ordered by the TGMSIDC.

8. Delivery and documents

Delivery of the goods/services shall be made by the bidder in accordance with the terms specified in the Schedule of requirements (Annexure-I). The details of shipping and/or other documents to be furnished and submitted by the bidder are specified below.

i. For Goods supplied from abroad:

Within 24 hours of shipment, the Bidder shall notify the TGMSIDC and the Insurance Company by fax the full details of the shipment including contract number, description of goods, quantity, the vessel, the bill of lading number and date, port of loading, date of shipment, port of discharge, etc. The Bidder shall mail the following documents to the TGMSIDC, with a copy to the Insurance Company.

- a. Four copies of supplier's invoice showing goods description, quantity, unit price and total amount.
- b. Four copies of packing list identifying contents of each package.
- c. Insurance certificate, Manufacturer's/Supplier's warranty certificate.
- d. Inspection certificate, issued by the nominated inspection agency and the Supplier's factory inspection report; and
- e. Certificate of origin.

The above documents shall be received by the TGMSIDC at least one week before arrival of Goods at the port or place of arrival and, if not received, the Bidder will be responsible for any consequent expenses.

ii. For Goods from within India:

Upon delivery of the goods to the user, the bidder shall notify the TGMSIDC and mail the following documents to the TGMSIDC:

- a. Four copies of the Bidder invoice showing goods description, quantity, unit price total amount.
- b. Delivery note, or acknowledgement of receipt of goods from the user.
- c. Manufacturer's or Supplier's warranty certificate.
- d. Inspection Certificate issued by the nominated inspection agency, and the Supplier's factory inspection report.
- e. Certificate of Origin.
- f. Insurance policy.
- g. Excise gate pass, Octroi receipts wherever applicable duly sealed indicating payments made; and

The above documents shall be received by the TGMSIDC before arrival of the Goods (except deliver note and where it is handed over to the user with all documents) and if not received, the bidder will be responsible for any consequent expenses.

9. Insurance

It is suggested that the goods supplied under the contract shall be fully insured in a freely convertible currency against loss or damage during transportation, storage, and delivery up to user site. The insurance should be for replacement value from "Warehouse to warehouse (final destination)" on "All Risks".

10. Transportation

Transport of the goods to the project site(s) shall be arranged by the bidder at his cost.

11. Goods Installation

The bidder is responsible for all unpacking, assemblies, wiring, installations, cabling between goods units and connecting to power supplies. The bidder will test all hardware operations and accomplish all adjustments necessary for successful and continuous operation of the goods at all installation sites.

12. Incidental services

The Bidder may be required to provide any or all of the following services, including additional services:

- i. Supervision or maintenance and/or repair of the supplied goods and services, for a period of time agreed by the parties, provided that this service shall not relieve the Bidder of any warranty obligations under this Contract, and
- ii. Training of TGMSIDC and/or its user organisation personnel, at the TGMSIDC/User site, in using goods.
- iii. Prices charged by the Bidder for the preceding incidental services, if any, should be indicated separately (if required), and same will be mutually negotiated separately.

13. Spare parts

- i. The Bidder may be required to provide any or all of the indicated spare parts, materials, notifications and information pertaining to spare parts manufactured or distributed by the Bidder.
- ii. Such spare parts as the TGMSIDC may elect to purchase from the Bidder, provided that this election shall not relieve the Bidder of any warranty obligations under the contract and
- iii. In the event of termination of production of the spare parts, an advance notification to the TGMSIDC of the pending termination, in sufficient time to permit the TGMSIDC to procure needed requirements and
- iv. The Bidder shall ensure availability of spares in stock at his nearest service centre for immediate delivery such spare parts as: (a) are necessary for a minimum of 7 years of operation after installation at the Purchaser's sites (b) are necessary to comply with bid requirements.

14. Warranty

- i. The warranty shall be unconditional and inclusive of all the spares & accessories supplied along with the equipment for a period as mentioned in the schedule of requirements (Annexure-I)
- ii. Free maintenance services including all spares and accessories and required calibrations shall be provided by the bidder during the period of warranty.
- iii. The Bidder shall warrant that the goods and services supplied under the contract are new, unused, of the most recent or current models, and that they incorporate all recent improvements in design and materials unless provided otherwise in the contract.
- iv. The Bidder shall further warrant that all goods and services supplied under this contract shall have no defect arising from design, materials or workmanship or from any act or omission of the Bidder that may develop under normal use of the supplied goods in the conditions prevailing in the country of final destination. (Rat bites shall not be an exception).
- v. The Bidder shall warrant that the manufacturer shall produce the spare parts, reagents & consumables required for the performance of the equipment at least for minimum 10 years from the time of purchasing the equipment.

- vi. if any consumables requires to be purchased by TGMSIDC to perform such services by the bidder. The price (Basic Rate + GST) of such items should be clearly given in the price bid.
- vii. The Bidder shall, in addition, comply with the performance guarantees specified under the contract. If, for reasons attributable to the Bidder, these guarantees are not attained in whole or in part, the Bidder shall, make such changes, modifications, and/or additions to the goods or any part thereof as may be necessary in order to attain the contractual guarantees specified in the contract at its own cost and expenses and to carry out further performance tests.
- viii. The equipment supplied should achieve required uptime of 95% calculated over 3 months period.
- ix. The maximum response time for maintenance complaint from any of the destination (i.e., time required for supplier's maintenance engineers to report to the installations after a request call is made or letter is written) shall not exceed 12 hours.
- x. The bidder will accomplish preventive maintenance as per manufacturer guidelines and breakdown maintenance activities to ensure that all goods perform their functions without defect or interruption for at least required uptime.
- xi. In case uptime is less than the stipulated uptime, the penalty as per clause 24 of GCC shall be imposed on the bidder.
- xii. The amount of penalty if any, will be recovered at source from the Performance security during the warranty period.
- xiii. TGMSIDC/end user shall promptly notify the Bidder in writing of any claims arising under this warranty.

15. Comprehensive Annual Maintenance Contract (CAMC)

- i. Bidder shall submit Performance Security for CAMC for amount equivalent to 5% of the total CAMC value at least 30 days in advance of commencement of maintenance period.
- ii. The validity of the Performance Security shall be covering entire maintenance period and 60 days beyond it, for performing its obligation during the maintenance period.
- iii. The bidder shall provide Comprehensive Annual Maintenance services (Which will include spare parts and accessories) after warranty for a period as mentioned in the schedule of requirements (Annexure-I) at the rates indicated by bidder in its proposal. The cost of annual maintenance and repairs cost, which will include cost of spares & accessories replaced, shall be paid in equal half yearly instalments at the end of each half year.
- iv. The equipment supplied should achieve required uptime of 95% calculated over 3 months period.

The maximum response time for maintenance complaint from any of the destination (i.e., time required for supplier's maintenance engineers to report to the installations after a request call is made or letter is written) shall not exceed 12 hours.

- v. The bidder will accomplish preventive maintenance as per manufacturer guidelines and breakdown maintenance activities to ensure that all goods perform their functions without defect or interruption for at least required uptime.(Rat bites shall not be an exception)
- vi. In case uptime is less than the stipulated uptime, the penalty as per clause 24 of GCC shall be imposed on the bidder.
- vii. The amount of penalty if any, will be recovered at source from the Performance security deposit submitted for CAMC period.

16. Payment

- i. The bidder's request(s) for payment shall be made to the TGMSIDC in writing, accompanied by an invoice describing, as appropriate, the goods/service delivered/performed.
 - a) 90% of Contract Value will be paid on submission of original Invoice enclosing original Delivery Challan with stock entries and installation report in Annexure-6 from the concerned authorities.
 - b) Remaining 10% of payment will be paid on submission of satisfactory report in Annexure-7 from the concerned end user.
- ii. The currency of payment will be Indian rupees.
- iii. The annual maintenance and repair cost as per separate agreement if any, shall be paid in equal half yearly instalments at the end of each half year as per the rates quoted and agreed.

17. Prices

- i. Prices charged by the Bidder for goods delivered and services performed under the contract shall not vary from the prices quoted by the Bidder in its bid, with the exception of any price adjustments authorised in special conditions of contract or in the request for bid validity extension, as the case may be.
- ii. The Bidder shall not charge a higher price to TGMSIDC than the price he charges or quotes to any other Govt. organization or to a private Agency during the validity period of Rate Contract. If it is found that the firm has quoted a lower rate in another tender for another organization in the country and that it has not passed on the benefit of the lower rate to TGMSIDC, the differential amount will be deducted from the bills of the Firm. Further such firms will be blacklisted for a period of 2 years.
- iii. The Bidders shall not quote unreasonably high prices. In case the quoted price/prices is/are unreasonably high then the TGMSIDC reserves the right to disqualify such bidder(s) to participate in future tenders invited by TGMSIDC.
- iv. TGMSIDC may ask the bidder(s) to produce copies of invoices of same model (s) of item (s) quoted in the tender, supplied to any other Government organization in support of their quoted prices.

- v. The quantity mentioned in bid is only indicative and actual requirement may go up or go down. The Rates shall not vary with the quantum indicated in order during the RC period.

18. Change orders

TGMSIDC may, at any time, by written order given to the Bidder, make changes within the general scope of the Contract in any one or more of the following:

- i. Drawing, designs, or specifications, where Goods to be supplied under the Contract are to be specifically manufactured for the TGMSIDC.
- ii. The method of shipment or packing.
- iii. The place of delivery and/or the services to be provided by the Bidder.
- iv. If any such change causes an increase or decrease in the cost of, or the time required for, the bidder's performance of any provisions under the contract, an equitable adjustment by mutual agreement shall be made in the contract price or delivery schedule, or both, and the contract shall accordingly be amended. Any claims by the Bidder for adjustment under this clause must be asserted within thirty (30) days from the date of the Bidder's receipt of the change order.

19. Contract amendment

No variation in or modification of the terms of the Contract shall be made except by written amendment signed by the parties.

20. Assignment

The Bidder shall not assign, in whole or in part, its obligations to perform under this Contract, except with the prior written consent from TGMSIDC.

21. Subcontracts

The Bidder shall not sub-contract in whole or in part, its obligations to perform under this Contract, except with the prior written consent from TGMSIDC. Such sub-contracting shall not relieve the Bidder from any liability or obligation under the contract. Subcontract shall be only for bought-out items and sub-assemblies only.

22. Delays in the supplier's performance

- i. Delivery of the Goods and performance of the services shall be made by the Bidder in accordance with the time schedule specified by the TGMSIDC in the specifications.
- ii. If at any time during performance of the Contract, the Bidder or its subcontractor(s) should encounter conditions impeding timely delivery of the goods and performance of services, the Bidder shall promptly notify the TGMSIDC in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the bidder's notice, TGMSIDC shall evaluate the situation and may at its discretion extend the Bidder's time for performance, with or without liquidated damages.

- iii. A delay by the Bidder in the performance of its delivery obligations shall render the bidder liable to the imposition of appropriate liquidated damages, unless an extension of time is agreed upon by TGMSIDC without liquidated damages.

23. Liquidated damages/Penalty

If the Bidder fails to deliver any or all of the goods or fails to perform the services within the time period(s) specified in the contract, TGMSIDC shall, without prejudice to its other remedies under the Contract, deduct the following amounts as LDs/penalty from the Performance Security, until actual delivery or performance, subject to maximum limit. Once the maximum is reached, contract shall be deemed cancelled unless it is revived, on written request from bidder, by TGMSIDC with or without penalty and conditions.

a) LDs for late deliveries:

0.5% of value of late delivered goods per week or part thereof will be taken as one-week subject to maximum of 10%. Once 10% is reached, contract is deemed cancelled for undelivered goods. No payment shall be made for goods delivered under deemed cancelled contract.

b) Penalty for failure to maintain uptime during warranty or Comprehensive Annual Maintenance Contract: For every reduction in up time by 1.00 % from 95%, penalty will be 1.5% of Purchase value of that equipment.

24. Termination for default

- i. TGMSIDC, without prejudice to any other remedy for breach of Contract, by written notice of default sent to the Bidder, may terminate the Contract in whole or in part:
 - a. If the Bidder fails to deliver any or all of the Goods/services within the time period(s) specified in the contract, or within any extension of time thereof granted by the TGMSIDC or
 - b. If the Bidder fails to perform any other obligation(s) under the Contract or
 - c. If the Bidder, in the judgement of the TGMSIDC has engaged in corrupt or fraudulent practices in competing for or in executing the Contract.
- ii. In the event the TGMSIDC terminated the contract in whole or in part, TGMSIDC may procure, upon such terms and in such manner as it deems appropriate, goods or services similar to those undelivered, and the Bidder shall be liable to the TGMSIDC for any excess costs for such similar goods or services. Such excess cost shall be recoverable from payment any payable to supplier under this contract or any other contract or from Security deposit or from both. However, the Bidder shall continue performance of the contract to the extent not terminated.
- iii. If contract is terminated, in part or whole, for default of supplier, the security deposit shall be liable for forfeiture and bidder will also be liable for blacklisting.

25. Force majeure

- i. The Bidder shall not be liable for forfeiture of its performance security, liquidated damages, or termination for default if and to the extent that its delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure.
- ii. For purposes of this clause, "Force Majeure" means an event beyond the control of the Bidder and not involving the Supplier's fault or negligence and not foreseeable. Such events may include, but are not restricted to, acts of the TGMSIDC in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions and freight embargoes.
- iii. If a Force Majeure situation arises, the Bidder shall promptly notify the TGMSIDC in writing of such condition and the cause thereof. Unless otherwise directed by the TGMSIDC in writing, the Bidder shall continue to perform its obligations under the Contract as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

26. Termination for insolvency

TGMSIDC, may at any time terminate the contract by giving 30 days' written notice to the Bidder if the Bidder becomes bankrupt or otherwise insolvent. In this event, termination will be without compensation to the Bidder, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the TGMSIDC.

27. Termination for convenience

- i. TGMSIDC, may at any time by giving 30 days' written notice to the Bidder, terminate the Contract, in whole or in part, for its convenience. The notice of termination shall specify that termination is for the TGMSIDC /Purchaser's convenience, the extent to which performance of the Bidder under the Contract is terminated, and the date upon which such termination becomes effective.
- ii. The goods that are complete and ready for shipment within thirty (30) days after the bidder's receipt of notice of termination shall be accepted by the TGMSIDC at the contract terms and prices. For the remaining Goods, the TGMSIDC may elect to have any portion completed and delivered at the contract terms and prices at its discretion.
- iii. The bidder will not be entitled for any compensation whatsoever in respect of such termination.

28. Resolution of disputes

- i. TGMSIDC and the vendor shall make every effort to resolve amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the contract.
- ii. If, after thirty (30) days from the commencement of such informal negotiations, TGMSIDC and the vendor have been unable to resolve amicably a contract dispute, either party may require that the dispute be referred for resolution to the

formal mechanisms specified herein. These mechanisms may include, but are not restricted to, adjudication, conciliation and arbitration.

- iii. If not satisfied by the decision in adjudication, or if adjudication fails to notify his decision within 60 days, the vendor may proceed to invoke the process of conciliation.
- iv. Further, on termination of conciliation, if the dispute is still alive, the aggrieved party shall be free to invoke arbitration.
- v. The dispute resolution mechanism under arbitration shall be as follows:
 - a. In case of a dispute or difference arising between TGMSIDC and the vendor relating to any matter arising out of or connected with this agreement, such disputes or difference shall be settled in accordance with the Arbitration and Conciliation Act, of India, 1996.
 - b. Each party shall have the right to appoint one arbitrator and the third arbitrator shall be appointed by Indian Council of Arbitration.
 - c. The arbitration proceedings shall be conducted at Hyderabad in English language.
 - d. The award given by arbitrators shall be final and binding on the parties.
 - e. For the purpose of Arbitration, a notice to be served only to the Agreement Authority.

29. Governing language

The contract shall be written in English. All correspondence and other documents pertaining to the contract which are exchanged by the parties shall be written in same languages.

30. Applicable law

The contract shall be interpreted in accordance with appropriate Indian laws. The competent court of jurisdiction shall be High Court of TS, Hyderabad.

31. Notices

- i. Any notice given by one party to the other pursuant to this contract shall be sent to the other party in writing or by email or facsimile and confirmed in writing to the other party's address.
- ii. A notice shall be effective when delivered or tendered to other party whichever is earlier.

32. Taxes (GST) and duties

The bidder shall be entirely responsible for all taxes, duties, license fee, Octroi, road permits etc. Incurred until delivery of the contracted Goods/services at the site of the user or as per the terms of tender document if specifically mentioned. Income Tax deduction at source will be done at the time of payment being made to Bidder.

33. Licensing considerations

The software supplied by the bidder will be used throughout Telangana State or its user's sites even outside Telangana State.

34. Protection against damages due to site conditions:

- i. The system shall not be prone to damage during power failures and trip outs. The normal voltage and frequency range conditions available at site are as under:
 - a. Voltage range 180 –260 Volts
 - b. Frequency 48.5 – 50.10 Hz.
- ii. The ambient temperature may vary from 10⁰C to 48⁰ C. The relative humidity may range in between 10% to 95%.
- iii. The goods supplied under the contract should provide protection against damage under above conditions& rat bites.

35. Fail-safe procedure

The bidder should indicate in detail the fail-safe procedure(s) for the following:

- i. Power failure
- ii. Voltage variation
- iii. Frequency variation
- iv. Temperature and humidity variations.

36. Training:

For each goods/hardware and software component installed, the Bidder may be required to train the designated TGMSIDC and user personnel to enable them to effectively operate the total system. The training, if required, shall be given, as specified in the SCC at the locations specified. The training schedule will be agreed to by both parties during the performance of the Contract.

37. Site Preparation and Installation:

The bidder will inform the User well in advance the requirements of site along with drawings for installation of goods. He shall also perform a site inspection to verify the appropriateness of the sites before the installation of every good.

38. Patent Rights:

The supplier shall indemnify the purchaser against all third-party claims of infringement of patent rights, trademark, industrial design rights arising from the use of the goods or part thereof by user.

SECTION -V

SPECIAL CONDITIONS OF CONTRACT (SCC)

In case of conflict, the provisions of this section shall OVERRIDE provisions indicated elsewhere in the bid document.

1. The Bidder shall allow inspection of the factory at any time by a team of Experts/Officials of the Bid Inviting Authority and or of the Govt. of Telangana State. The Bidder shall extend all facilities to the team to enable to inspect the manufacturing process, quality control measures adopted etc., in the manufacture of the items quoted. If a Company/Firm does not allow for any such inspection, their Bids will be rejected.

2. For Pre bid meeting, the Bidder shall make arrangement to send a qualified, knowledgeable person regarding his product. Each bidder will have an exclusive person representing his items.

In the past it was noticed that a single person was representing 4-5 companies leading to utter confusion at technical evaluation stage and delay in executing the project.

3. In the pre bid meeting the bidder is limited to discuss terms which are of general nature. Technical Specifications are under the purview of the Expert technical committee.
4. At the document verification level meeting, each bidder shall have exclusive knowledgeable representative for his items. Single person representing multiple firms is strictly not allowed.
5. In case of appointing a local dealer/Supplier by the successful bidder for logistic reasons, the successful bidder should enter into a "Triparty Agreement" on Rs.100/- Non-Judicial Stamp Paper between Bidder (himself), his appointed experienced supplier and TGMSIDC. The format of the Triparty Agreement shall be as per Form -P-10.
6. Non-fulfillment of any conditions mentioned in this document will lead to rejection of the bid before finalization of the tender and after finalization will lead to withholding of the performance security as penalization.
7. **Fall Clause:** If the rate contract holder reduces its price or sells or even offers to sell the rate contracted goods or services following conditions of sale similar to those of the rate contract, at a price lower than the rate contract price, to any person or organization during the currency of the rate contract, the rate contract price will be automatically reduced with effect from that date for all the subsequent supplies under the rate contract and the rate contract will be amended accordingly.

Other parallel rate contract holders, if any, are also will be given opportunity to reduce their price as well, by notifying the reduced price to them and giving them 07 (seven) days' time to intimate their revised prices, if they so desire, in sealed cover to be opened in public on the specified date and time and further action taken as per standard practice.

On many occasions, the parallel rate contract holders attempt to grab more orders by unethical means by announcing reduction of their price (after getting the rate contract) under the guise of Fall Clause. This situation will be dealt with similar manner as mentioned in the clause 8.1.13 in the Manual for procurement of Goods 2022 including debarring the vendor for a period of two years from participation in the tenders floated by TGMSIDC.

8. Calculation for L1 criteria:

Basic Cost of item + GST + ((warranty) + (CAMC) for the no. of years mentioned in Annexure – 1.

9. Bidders shall mention CAMC cost for the no. of years mentioned in Annexure – 1, which shall not exceed 5% of unit price for each year. The CAMC charges will not be included in the basic price.
10. The company software should be compatible with LIMS of the user dept.
11. The company is responsible to integrate their software with the user software when required.
12. The software provided by the company should be upgradeable as and how the manufacturer releases a new version free of cost.
13. The anticipated quantities indicated in Annexure-1 are tentative. The successful bidder(s) shall supply the quantities for which POs are issued at the same approved rates during the rate contract period.
14. **Country of origin:** All goods and related services to be supplied under the contract / agreement shall have their origin in India or any other country with which India has not banned trade relations.

As per the restriction under rule 144(xi) of the General Financial Rules (GFR) 2017 -***“Any bidder from a country which shares a land border with India will be eligible to bid in any procurement of goods only if the bidder is registered with the competent authority i.e., Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT)”***.

SECTION –VI

ANNEXURES

ANNEXURE - 1
SCHEDULE OF REQUIREMENTS

Sl. No.	Name of the Equipment	Anticipated Qty	Minimum quantities (in Nos) for each item/ product mentioned under Form-P- 2B (i.e., Offered Model) (Please refer to note below)
A	B	C	D
1	DEXA SCANNER	4	2

Note: The bidder should have supplied the Quantities indicated in column 'D' during the last three Financial years.

S. No	Name of the Item	Qty	EMD (Rs)	Average Annual Turnover (Rs)	Warranty (Years)	CAMC (Years)
1	DEXA SCANNER	4	1,50,000	1,50,00,000	3	5

Note:

- Bidders shall furnish Average Annual turnover for the previous three financial years i.e. 2022-23, 2023-24 & 2024-25 as mentioned against the corresponding items.
- If the bidders quote for more than one item, shall have Avg. Annual Turnover in cumulative of quoted Items.
- If the bidders quote for more than one item, shall furnish EMD also in cumulative of quoted items.
- Variation in Quantities:
The anticipated quantities indicated above are tentative. The successful bidder(s) shall supply the quantities for which POs are issued at the same approved rates during the rate contract period.
- Period of Delivery, Installation & Commissioning:
Within 60 days from the date of issue of Purchase Order.
- Rodent and pest control is the responsibility of vendor till the period of contract i.e., 3 Years Warranty and 5 Years CMC period.

ANNEXURE – 2

TECHNICAL SPECIFICATIONS OF GOODS

Technical Specification
Item: DEXA Scanner
Scanning method: Wide angle Fan Beam
1. X-ray Source: Constant Potential Source / Switched Pulse Dual Energy
2. Detector System: Multi Element / Direct Digital Detectors (minimum 64) – solid state with fast pulse counting technology
3. Scan Time: A/P Spine – < 30 sec; femur – < 30 sec; including whole body analysis/scan time < 7 minutes.
4. Scanning Method: Fan Beam
Should be with Good Image Quality and High Resolution capability
5. Calibration: Automatic calibration Technique for test Programme & quality control
6. BMD Precision: Better Than 1%
7. Patient Position: Cross Hair Laser Light
8. Scan region: 190cm×60cms or more for total body
9. Patient Weight Limits: upto minimum 150 Kgs
10. Weighing scale and Stadiometer (for height measurement) to be supplied.
11. Radiation Exposure Safety : < 1μSv
12. Computer System:
a) Workable with most Advanced configuration
b) Hard Disk Minimum – 1 TB with additional external storage of 2 TB.
c) RAM – Minimum 4 GB
d) CD / DVD drive
e) Monitor: At least 19" Color monitor - widescreen
f) Printers: Laser printer with 4 extra cartridges.
13. Software required for the following:
a) Total Body with Body Composition
b) Comparison to previous Scan
c) Lateral spine BMD
d) AP Spine
e) Vertebral Assessment (AP & Lateral Views)
f) Fore Arm
g) Dual Femur
h) Orthopedic Hip Analysis
i) Visceral Fat Analysis
j) Pediatric software (Spine & Total Body for age group 5-19)
k) DICOM Compatibility
l) Composer
m) infant whole body analysis
n) Trabecular bone scoring software (TBS)
o) Phantom for calibration

p) software for FRAX
14. Sample size- 1*1.5 mm or less
15. Integration with existing Hospital Information System/PACS.
16. Software requirements: Software for FRAX assessment, Advanced Body Composition Assessment, ability to store data and compare serial scans for assessment of rate of change. DICOM & PACS compatibility.
17. Software update to be provided free of cost for next 10 years.
18. Online UPS: minimum 3KVA with 30 minutes backup for entire system (DEXA machine, computer and printer)
19. AERB Type approval: Type approval shall be provided for the model quoted
20. Minimum 2 tonne air conditioning or equivalent cooling to be provided by vendor.
21. For the comfort of the Patient during scanning, following to be provided: a) adjustable height of the table b) provision of footstep.
22.1) 3 years warranty and servicing
22.2) Training of technician
22.3) The machine should not be interrupted from functioning due to technical reasons covered under warranty. Furthermore, the time duration of interruption should not be >5% of total time in a year when machine is being serviced or repaired.
22.4 Consumables/accessories to be quoted and price fixed for 8 years.
22.5. Following accessories to be provided
22.5.1. Lead apron (minimum 2 nos.)
22.5.2. Computer table with 3 revolving chairs.
23. Bidder to execute site modification works, electrical works and other miscellaneous works required for successful installation and commissioning of the DEXA scanner.
24. Certifications:
1) Should be USFDA/European CE approved.
2) Should be CDSCO approved.

ANNEXURE-3

Bid security (EMD) form for Bank Guarantee

To,
Managing Director,
TGMSIDC, Hyderabad

(To be issued by a bank scheduled in India and having at least one branch in Hyd.)

Whereas..... (Here in after called "the Bidder") has submitted its bid dated..... (Date) for the execution of..... (Here in after called "the Bid")

KNOW ALL MEN by these presents that WE of having our registered office at..... (hereinafter called the "Bank") are bound unto the Telangana State Medical Services and Infrastructure Development Corporation(hereinafter called "The TGMSIDC") in the sum of for which payment well and truly to be made to the said TGMSIDC, the Bank binds itself, its successors and assignees by these presents.

The conditions of this obligations are:

1. If the bidder withdraws its bid during the period of bid validity or
2. If the bidder, having been notified of the acceptance of its bid by the TGMSIDC during the period of bid validity:
 - a. fails or refuses to execute the contract form if required; or
 - b. fails or refuses to furnish the performance security, in accordance with the bid requirement;

We undertake to pay the TGMSIDC up to the above amount upon receipt of its first written demand, without the TGMSIDC having to substantiate its demand, provided that in its demand the TGMSIDC will note that the amount claimed by it is due to it, owing to the occurrence of one or all of the conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including 45 days after the period of the bid validity, and any demand in respect thereof should reach the Bank not later than the above date i.e. up to(Date)

Place:
Date:

Signature of the Bank
And seal.

Annexure-3a
Bid Securing Declaration
(Ref GIT, cl. 14-viii)

(To be submitted as part of technical bid)

(On Company Letter-head)

Bidder's Name _____

[Address and Contact Details]

Bidder's Reference No. _____ Date.....

To

The Managing Director,

TGMSIDC

DM&HS Office Campus,

Sultan Bazar, Hyderabad, 500 095.

Ref: Tender Document No _____

Sir/ Madam

We, the undersigned, solemnly declare that:

We understand that according to the conditions of this Tender Document, the bid must be supported by a Bid Securing Declaration In lieu of Bid Security.

We unconditionally accept the conditions of this Bid Securing Declaration. We understand that we shall stand automatically suspended from doing business in the State of Telangana or elsewhere in the country for a period of 3 years from the date of opening of this bid if we breach our obligation(s) under the tender conditions if we:

- 1) Withdraw/ amend/ impair/ derogate, in any respect, from our bid, within the bid validity; (or)
- 2) being notified within the bid validity of the acceptance of our bid by the Procuring Entity:
 - a) Refused to or failed to produce the original documents for scrutiny or the required Performance Security within the stipulated time under the conditions of the Tender Document.
 - b) Fail or refuse to sign the contract.

We know that this bid-Securing Declaration shall expire if the contract is not awarded to us, upon:

- 1) receipt by us of your notification
 - a) of cancellation of the entire tender process or rejection of all bids or
 - b) of the name of the successful bidder or
- 2) Forty-five days after the expiration of the bid validity or any extension to it.

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of.....

[Name & address of Bidder and seal of company]

Dated on day of [Insert date of signing]

Place..... [Insert place of signing]

ANNEXURE-4
Performance Security form

(To be issued by a bank scheduled in India and having at least one branch in Hyderabad)

To,
Managing Director,
TGMSIDC, Hyderabad

WHEREAS..... (Name of Vendor) hereinafter called "the Vendor" has undertaken, in pursuance of Notification of Award dated, (Date), to supply called "the Contract".

AND WHEREAS it has been stipulated by you in the said Contract that the Vendor shall furnish you with a Bank Guarantee by a recognised bank for the sum specified therein as security for compliance with the Supplier's performance obligations in accordance with the Contract.

WHEREAS we have agreed to give the Vendor a Guarantee:

THEREFORE, WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Vendor, up to a total of Rs. (Rupees.....) and we undertake to pay you, upon your first written demand declaring the Vendor to be in default under the Contract and without cavil or argument, any sum or sums within the limit of Rs..... (Amount of Guarantee) as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This guarantee is valid until the day of (Date)

Place:
Date:

Signature of guarantors
And seal.

ANNEXURE-5

Manufacturer authorisation

The authorisation may be in the nature of a letter, memorandum or certificate regularly granted by the manufacturer to its channel partners, authorised solution providers, system integrators, distributors, etc. Or a specific letter issued for purposes of this bid. However, it will not apply when bid is open only to manufacturers.

Such communication should include statements / undertakings from the said manufacturer to the following effect.

1. Guarantee and warranty coverage in respect of the goods and services manufactured by the said manufacturer shall be honoured by that manufacturer, their channel partners, distributors, authorised service centres as the case may be.
2. The manufacturer updates the bidder and their technical personnel with relevant technical literature, training and skill transfer workshops etc. On a regular basis.
3. The manufacturer provides back-to-back technical support to the said bidder on a continuing basis.
4. The said bidder is authorised to submit bid and provide warranty and maintenance service during the contract period.

ANNEXURE-5a

(Please see Section II GIT(A.3.i) of Eligibility Criteria)
(to be submitted by manufacturers)

MANUFACTURER'S AUTHORIZATION FORM

To
The Managing Director,
TGMSIDC
DM&HS Office Campus,
Sultan Bazar, Hyderabad, 500 095.
Sir,

Dt: _____.2025

Tender Notice No. _____ Dt: _____

We _____ who are established and reputable manufacturers
of _____ having factories at
_____ and _____ do hereby authorize M/s.
_____ (Name and address of Agents) to bid, negotiate and
conclude the contract with you against Tender Notice No. _____ for the
above goods manufactured by us.

No company or firm or individual other than M/s. _____ are
authorized to bid, negotiate and conclude the contract in regard to this business against
this specific Tender Notice.

We hereby declare that we are willing to provide guarantee/warranty and after sales
service during the period of comprehensive warranty/CMC/AMC as per the above tender.
We also hereby declare that we have the capacity to manufacture and supply, install and
commission the quantity of the equipments tendered within the stipulated time.

We hereby extend our full guarantee and warranty as per Clause 14 & 15 of the General
Conditions of Contract and read with the SECTION –V of Special Conditions of Contract,
for the Goods offered for supply against this invitation for bid by the above firm.

Yours faithfully,

(Name) for and on behalf of M/s.

(Name of manufacturers)

Note: This letter of authority is on the letterhead of the manufacturing concern and should
be signed by a person competent and having the power of attorney to bind the
manufacturer.

ANNEXURE-5b

(Please see Section II GIT(A.3.i of Eligibility Criteria)
(to be submitted by Authorized Distributors)

MANUFACTURER'S AUTHORIZATION FORM

To
The Managing Director,
TGMSIDC
DM&HS Office Campus,
Sultan Bazar, Hyderabad, 500 095.
Sir,

Dt: _____.2025

Tender Notice No. _____ Dt: _____

We _____ who are established and reputable manufacturers
of _____ having factories at
_____ and _____ do hereby authorize M/s.
_____ (Name and address of Agents) to bid, negotiate and
conclude the contract with you against Tender Notice No. _____ for the
above goods manufactured by us.

No company or firm or individual other than M/s. _____ are
authorized to bid, negotiate and conclude the contract in regard to this business against
this specific Tender Notice.

We also hereby undertake to provide full guarantee/warranty/CMC/AMC as agreed by
the tenderer in the event the tenderer is changed as the dealers or the tenderer fails to
provide satisfactory after sales and service during such period of comprehensive
warranty/CMC/AMC and to supply all the spares/ reagents during the said period.

We also hereby declare that we have the capacity to manufacture and supply, install and
commission the quantity of the equipments tendered within the stipulated time.

We hereby extend our full guarantee and warranty as per Clause 14 & 15 of the General
Conditions of Contract and read with the SECTION –V of Special Conditions of Contract,
for the Goods offered for supply against this invitation for bid by the above firm.

Yours faithfully,
(Name) for and on behalf of M/s.

(Name of manufacturers)

Note: This letter of authority is on the letterhead of the manufacturing concern and should
be signed by a person competent and having the power of attorney to bind the
manufacturer.

ANNEXURE-6

Installation/Acceptance Certificate (On letter head of Bidder)

1	Hospital name:		5	Invoice No/Date:	
2	Department Name:		6	Dc No/Date:	
3	Supplier Name:		7	Installation Date	
4	Po. No/Date:				

Sl. No.	Name of Equipment	Qty	Make	Model	Equipment Sl. No.	Warranty date	
						From	To

Remarks:

1	Signature of Head of Dept		6	Signature of Service Engineer:	
2	Doctor Name:		7	Service Engineer Name:	
3	Designation:		8	Designation:	
4	Department:		9	Mobile No.:	
5	Mobile No:		10	Service centre address:	

Certified by the Medical Superintendent:

Date and office seal:

ANNEXURE-7
Performance Certificate after installation& Commissioning

Date: _____

To
The Managing Director,
TGMSIDC, Hyd.

Sub: Satisfactory Performance Certificate for installation & Commissioning – Reg.
Ref: P.O. No. _____, Dt: _____. _____. 20__

.....

The following details are furnished towards the Equipment/Furniture items
received from M/s. _____:

1	Item Description and Quantity	
2	Make and Model	
3	Supplied by	
4	Invoice Number/Date:	
5	DC Number/Date:	
6	Installation & Commissioning Date:	

7. Remarks on the Functioning:

Signature of Head of the Dept:

Doctor Name:

Designation:

Mobile No:

1. Certified by the Medical Supdt./Principal:

Date and office seal.

Note: The Hospital authorities shall submit this report after 90 days of installation & commissioning of the equipment and stating functioning of the equipment for release of FSD amount.

ANNEXURE-8
CONSIGNEES LIST/DISTRIBUTION LIST

S. No	Name of the Equipment	Qty	Name of the Hospital/Institute	Contact details of the consignee

ANNEXURE-9

BID LETTER

From:
(Registered name and address of the bidder.)

Date:

To:
Managing Director,
TGMSIDC
DM&HS Office Campus,
Sultan Bazar, Hyderabad
500 095

Sir,

Having examined the bidding documents and amendments there on, we the undersigned, offer to provide goods/services/execute the works including supply, delivery and installation of goods in conformity with the terms and conditions of the bidding document and amendments there on, for the following project in response to your tender call No....., dated

Project title:

We undertake to provide goods/services/execute the above project or its part assigned to us in conformity with the said bidding documents for an estimated sum of Rs_____ (Rupees). (Total bid amount in words and figures) which may vary in accordance with the schedule of prices attached herewith and coverage options made by TGMSIDC or its user organisation.

If our bid is accepted, we undertake to;

1. provide goods/services/execute the work according to the time schedule specified in the bid document,
2. obtain the performance guarantee of a bank in accordance with bid requirements for the due performance of the contract during warranty/maintenance period, and
3. Agree to abide by the bid conditions, including pre-bid meeting minutes if any, which remain binding upon us during the entire bid validity period and bid may be accepted any time before the expiration of that period.
4. We undertake that in competing for the (and if the award is made to us, in execution) the contract, we will strictly observe the laws against fraud and corruption in India like but not limited to "The Prevention of Corruption Act 1988"
5. We understand that until formal contract is signed and executed, this bid and your notification of award shall constitute a binding contract between us.
6. We understand that you are not bound to accept the lowest or any bid you may receive, nor to give any reason for the rejection of any bid and that you will not defray any expenses incurred by us in bidding.

7. We hereby nominate Mr/Mrs....., (with complete contact details)withmobile number.....and e-mail ID.....,responsible for dealing with this tender process. His Photograph & signature are attested below.

Photograph of
the nominee to
be attested

Signature of the nominee

Attested by:

Place:

Bidder's signature and seal.

Date:

ANNEXURE-10

Contract form

THIS AGREEMENT made the day of..... (Year between TelanganaMedical Services and Infrastructure Development Corporation (hereinafter “TGMSIDC”) of one part and..... (Name of Vendor) of..... (City and Country of Vendor) (Hereinafter “the Vendor”) of the other part:

Whereas TGMSIDC is desirous that certain goods, solution, service and materials, as described in the bid document and briefly outlined below, should be provided by the Vendor.

Date of tender call:

Title of the project:

Brief outline of the work:

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

In this agreement words and expression shall have the same meanings as are respectively assigned to them in the bid document referred to.

The following documents shall be deemed to form and be read and construed as part of this Contract, viz.

1. Bid document(s)
2. Pre – bid conference minutes if any,
3. Clarification on bid document issued if any,
4. Purchase Order (PO).

In case of conflict among documents mentioned above, the documents mentioned above in reverse order will prevail over other documents.

In consideration of the payments to be made by the TGMSIDC to the Vendor as hereinafter mentioned, the Vendor hereby covenants with the TGMSIDC to provide the goods and services (solution, service and materials) and to remedy defects therein in conformity, in all respects, with the provisions of the contract.

The TGMSIDC hereby covenants to pay the Vendor in consideration of the provision of the goods and services and the remedying of defects therein, the contract price or such other sum as may become payable under the provisions of the contract at the times and in the manner prescribed by the contract.

Brief particulars of the goods and services which shall be supplied / provided by the Vendor are as under:

Solution, service or material	Qty	Unit price	Total Amount	Remarks

IN WITNESS whereof the parties hereto have caused this Agreement executed the day and year above written.

Signed, and delivered by

Signed, and delivered by

For the Vendor.
Vendor's seal:
Place
Date:

For TGMSIDC
TGMSIDC seal:
Place:
Date:

In the presence of:

Witness 1:

Witness2:

FORM-P1
Bidder Information

1	Name of the Firm	
2	Date of establishment	
3	Registered Office Address	
4	Factory Address:	
5	Phone No.	
6	Fax No.	
7	Email	
8	Total Support engineers at Hyderabad	
9	Whether Manufacturer?	Yes/No, If yes, Provide relevant documents
10	Whether Authorised Dealer/ Service provider	Yes/No, If yes, Provide relevant documents
11	Details of EMD furnished	
12	Details of certificates enclosed.	

Place:
Date:

Bidder's signature
And seal.

FORM-P2A

**Turn over details of Item /product
(Irrespective of brand/make/model)**

Sl. No.	Item Name	Financial Year	Nos. Sold	Amount (Rs in Lakhs)
		2022-23		
		2023-24		
		2024-25		
		2022-23		
		2023-24		
		2024-25		

FORM-P2B

Turn over details of Item /product (Brand and Model offered in Bid)

Sl. No.	Item Name	Quoted Make Model	Financial Year	Nos. Sold	Amount (Rs in Lakhs)
			2022-23		
			2023-24		
			2024-25		
			2022-23		
			2023-24		
			2024-25		

Place:
Date:

Bidder's signature
And seal.

FORM-P3

Past Performance Details

Sl. No	Customer Full address	P.O No. and date	Description of goods			Total Value of goods	Due date of supply	Actual date of completion of supply
			Qty	Make	Model			

Note: Form P3 should be indicated separately for each item quoted.

FORM P-4

Details of service centres at Hyderabad

Sl.No .	Full Address of service centre	Contact person name with phone No.	No. of support Engineers at service centre

Place:
Date:

Bidder's signature
And seal.

FORM-P5

Past Performance Certificate

(Certificate from the Statutory Auditor)

This is to certify that..... (Name of the Bidder) is a “Primary Manufacturer/Authorized Distributor’ of medical equipment offered under the Bid. The Bidder had supplied the quantities shown in the past performance statement and also completed the respective supplies as indicated in bid in form P-2A/2B.

Sl. No	Name of the Item	Make	Model	Nos. sold during three financial year as perForm P -2A/2B		
				2022-23	2023-24	2024-25
1						
2						

Further it is certified that the previously supplied equipment are reported to be in working condition for more than two years as on bid calling date without any adverse remarks from the respective users.

The bidder has previous experience in maintenance and repairs of equipment for _____ years and has qualified service staff working with him”.

Name of Authorized Signatory:

Designation:

Name of firm:

(Signature of the Authorized Signatory).

Place:

Date:

Bidder's signature

And seal.

FORM-P6

Financial Capacity of Bidder

(Certificate from Statutory Auditor)

A. Details of Annual Turnover for last three Financial years

	2022-23	2023-24	2024-25	Average
Annual Turnover (Rs. In Cr.)				

B. Details of Net Worth of Bidder as on last 31st March 2024:

Paid up Capital (Rs. In Cr.)	
Free Reserves (Rs. In Cr.)	
Total Net Worth (Rs. In Cr.)	

Place:
Date:

Bidder's signature
And seal.

Signature of Statutory Auditor with seal.

FORM-P7

Declaration Form (On Rs. 100/- Non-Judicial Stamp Paper)

I / We having Our
..... office at read and understood
the terms and conditions contained in the bidding documents under this notification for
bid and offer our bids unconditional, to the extent not stated at any other part of our bid.

We will not quote or supply the goods similar to the ones offered under this bid
notification to any agency or organization in the country, at the rate lower than the rate
quoted in this present tender.

If we found quoting lower rate than the rate quoted to the TGMSIDC, to any other
agency in the country during the validity of the present contract, we will remit the
differential cost to the TGMSIDC, unconditionally.

Place:
Date:

Bidder's signature
And seal.

FORM-P8

Details of Quoted Item /product (Brand and Model offered in Tender)

Sl. No.	Name of the Item	Make	Model	Manufacturing Year	HSN Code	Country of Origin
1						
2						

Place:
Date:

Bidder's signature
And seal.

FORM-P9

Warranty Period Service Details

Name of the Company:

S. No	Service	Includes	Consumables provided by Bidder	Frequency / Yearly/ Quarterly etc	Consumables to be provided by TGMSIDC if any

Place:

Date:

Bidder's signature

And seal.

FORM-P10

Tripartite Agreement

THIS Tripartite Agreement made the _____ day of _____ 2025 is for supply of _____ for Two years Viz.,

Tender Notice No. _____

This agreement is between

The PURCHASER: The MANAGING DIRECTOR, TGMSIDC, Sultan Bazar, Koti, Hyderabad – 500 095

And BIDDER/MANUFACTURER: M/s _____, Address: _____.

And SUPPLIER: M/s _____, Address: _____ who are the authorised distributor of M/s _____ (supporting documents enclosed).

WHEREAS

1) The Purchaser is desirous that certain goods and ancillary services should be provided by the Bidder Viz., _____, Tender Notice No. _____, for supply of _____ for Two years and

has accepted a Bid of M/s. _____.

2) The Purchaser has to release the purchase orders on the name of Supplier for supply of _____, as per the request made by M/s. _____ on _____ at the rates quoted in the above tender.

3) The Bidder (M/s. _____) and Supplier (M/s. _____) has agreed to abide all terms & conditions mentioned in Tender No. _____, Dated: _____.

4) The product performance and delay in supply due to any reason attributable to M/s. _____ (Supplier) shall be sole responsibility of M/s. _____ (Bidder).

5) M/s. _____ is a authorised distributor for smooth reagents/consumables supplies (logistics) and to maintain proper cold chain (as per manufacturers' specifications) towards supply of all _____ (Name of the item) as per the purchase orders released by TGMSIDC, Hyderabad at the rates quoted by M/s. _____.

6) The purchaser has to release the payments to the supplier.

MANUFACTURER/BIDDER SUPPLIER
MANAGING DIRECTOR

Authorized Signatory for

FORM T -1

Technical Compliance of the Item/ Product offered

Sl. No.	Item	Specification Required	Specification of proposed item	Specification Higher/Lower

Place:

Bidder's signature

Date:

and seal.

FORM –T2

Check List of Documents to be scanned and uploaded as part of the Bid

Sl. No.	Description	Scanned document loaded (Yes/No)
1	Scanned copy of UTR towards Processing Fee	
2	Scanned copy of EMD	
3	Bid Letter (Annexure-9)	
4	Bidder Information (Form-P1)	
5	Turnover Details of Item/Product (Form-P2A)	
6	Turnover Details of Item/Product (Form-P2B)	
7	Past Performance Details (Form-P3)	
8	Details of Service Centers at Hyd. (Form-P4)	
9	Past Performance Certificate (Form-P5)	
10	Financial Capacity of the Bidder (Form-P6)	
11	Bidder's Declaration Form (Form-P7)	
12	Details of Quoted items/ Product (Form-P8)	
13	Warranty Period Service Details (Form-P9)	
14	Tripartite Agreement (Form-P10)	
15	Technical Compliance of the item/product offered (Form T-1)	
16	Manufacturer's Authorization	
17	Manufacturing Certificate/License	
18	List of Goods with specification (Without Prices)	

Place: _____ Bidder's signature
Date: _____ And seal.

-----ENDOF THE DOCUMENT-----

//The Tender Invitation Document (TID) consisting of (1-72) pages for “Procurement and Supply of DEXA Scanner to Endocrinology department at various government hospitals / institutions in Telangana under Rate Contract for a period of 2 years” is approved//

Sd/- (02.01.2026)
Managing Director,
TGMSIDC